

Form No:HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Case No. Crl. Misc. No.49770-B of 2021

Bilal Moeen Butt alias Bilal **Versus** The State etc.
Hussain Butt

S.No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge and that of Parties of counsel, where necessary.
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30.09.2021	Mr. Muhammad Tallal Dar, Advocate for the petitioner. Mr. Irfan Zia, Deputy Prosecutor General along with Amin, ASI with record. Ch. Sarfraz Ali Deyal, Advocate for the complainant.
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Bilal Moeen Butt alias Bilal Hussain Butt, petitioner seeks post arrest bail in case FIR No.932 dated 13.07.2021 registered for offence under Section 489-F, PPC at Police Station Mozang District Lahore.

2. The allegation against the petitioner is that he issued a cheque amounting to Rs.32,88,535/- to the complainant which was dishonoured by the concerned bank on its presentation.

3. Arguments heard. Record perused.

4. According to the contents of the crime report, the total liability of the petitioner was Rs.95,00,000/- against which Rs.62,11,465/- were admittedly paid by him to the complainant when he issued the subject cheque for the payment of remaining smaller amount of Rs.32,88,535/- that stands returned. Similarly, during the arguments, learned counsel appearing on behalf of the complainant responding the argument furnished by learned counsel for the petitioner to the effect that according to petitioner’s bank statement, he has already paid the amount more than Rs.95,00,000/- to the complainant, admits that the petitioner was having regular business with the complainant and during the same out of

Rs.2,36,94,499/-, he paid Rs.2,00,45,964/- on different times through bank transactions. This reflects a regular and smooth business relationship of the two parties and the fact that the petitioner had been paying the due amounts to the complainant which leads this Court to hold that dishonest intention of the petitioner at the time of issuance of subject cheque, in the peculiar circumstances of this case, is the question that requires determination by the learned trial court after recording of evidence. This makes the case of the petitioner one of further inquiry into his guilt. The previous criminal record of the petitioner argued by the learned Prosecutor, in the light of above facts, is not sufficient to disentitle him to the grant of post arrest bail when he has made out his case one of further inquiry. It has also been noticed that except the case in hand, the remaining seven cases allegedly registered against the petitioner previously pertains to years 2008 & 2009 but the prosecution is not in a position to argue the conviction of the petitioner in any of those seven cases. Moreover, the offence alleged against the petitioner does not fall within the prohibitory clause of Section 497 of the Code of Criminal Procedure, 1898. He is behind the bars since his arrest on 18.07.2021. Conclusion of trial is not in sight. Taking stock of the whole discussion, this Court is of the opinion that keeping the petitioner further incarcerated till indefinite period is neither likely to serve any useful purpose nor seems justified hence, this petition is allowed and the petitioner is admitted to post arrest bail subject to his furnishing bail bonds in the sum of Rs.5,00,000/- with two surety each in the like amount to the satisfaction of the learned trial court.

(Syed Shahbaz Ali Rizvi)
Judge

APPROVED FOR REPORTING

Judge